



CHAPTER cciii.

An Act to confirm a Provisional Order under the Burgh Police (Scotland) Act 1892 relating to Paisley Waterworks. A.D. 1900.
[6th August 1900.]

WHEREAS Her Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the Provisions of the Burgh Police (Scotland) Act 1892 and it is requisite that the said Order should be confirmed by Parliament: 55 & 56 Vict. c. 55.

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Paisley Waterworks Provisional Order Confirmation Act 1900. Short title.

A.D. 1900.

S C H E D U L E.

PROVISIONAL ORDER.

WHEREAS by the Burgh Police (Scotland) Act 1892 it is (inter alia) provided (section 45) that whenever it shall appear to the Commissioners of any burgh to which that Act applies that they require additional powers for the better carrying out of the purposes of that Act and specially powers relating to the supply of gas or water or to the roads and streets or to drainage or sewers or the utilization of sewage in addition to the powers conferred by the Public Health Acts or for the repeal or amendment of any local Acts of Parliament relating to such subjects or their adaptation and adjustment to the provisions of the Act now in recital or for the other purposes therein mentioned they may apply to the Secretary for Scotland for a Provisional Order and (section 46) that after such inquiry as the Secretary for Scotland may direct it shall be lawful for him to issue a Provisional Order either in accordance with the prayer of the application or with such modifications or alterations as may appear to him requisite but no Provisional Order shall be of any validity unless the same has been confirmed by Act of Parliament :

And whereas the said Burgh Police (Scotland) Act 1892 is in force within the Burgh of Paisley in the County of Renfrew and the magistrates and town council thereof (hereinafter called "the magistrates and town council") are the Commissioners under the said Act within the said burgh :

And whereas by the Paisley Waterworks Act 1854 (hereinafter called "the Act of 1854") the magistrates and town council were appointed Commissioners for executing that Act and were empowered to purchase and acquire the undertaking of the Paisley Water Company and to supply the said burgh suburbs and places adjacent with water and to construct additional waterworks for the purpose of increasing such supply and to borrow the sum of seventy thousand pounds to defray the expense of such works in addition to such sums as might be required in relation to the acquisition of the said undertaking:

And whereas the magistrates and town council duly acquired the said undertaking and by the Paisley Waterworks Act 1866 (hereinafter called "the Act of 1866") the magistrates and town council were empowered to provide an increased supply of water to the said burgh the suburbs thereof and other places adjacent thereto and to make and maintain additional waterworks and to borrow on mortgage or by the creation of funded debt such sum as should be required in relation to the acquisition of the said undertaking and also any sums not exceeding eighty thousand pounds on security of the rates and charges leviable under the provisions of the Act of 1866 and the Act of 1854 so far as regards inter alia the power to borrow money (which power had not been exercised) was repealed :

And whereas by the Paisley Waterworks Act 1876 (hereinafter called "the Act of 1876") the magistrates and town council were authorised to construct new

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waterworks and to borrow the further sum of fifty thousand pounds on security of the rates and charges leviable under the Act of 1866: A.D. 1900.

And whereas by the Paisley Waterworks Act 1881 (herein-after called "the Act of 1881") the magistrates and town council were authorised to construct additional works and to borrow a further sum of one hundred and sixty-five thousand pounds on the security of the rates and charges leviable under the Act of 1866 and the Act of 1881:

And whereas by the Paisley Waterworks Provisional Order Confirmation Act 1897 (herein-after called "the Order of 1897") the magistrates and town council were authorised to borrow the additional sum of fifty thousand pounds upon security of the last-mentioned rates and charges and section 24 of the Act of 1881 was amended accordingly:

And whereas the magistrates and town council have presented a petition to me as Secretary for Scotland setting forth the above-mentioned Acts and Order and representing to me that the magistrates and town council have borrowed and applied for the purposes of the Acts of 1854 1866 1876 and 1881 the whole amount they were by the Acts of 1866 1876 and 1881 and the Order of 1897 authorised to borrow that the demand for water in the said Burgh of Paisley and the suburbs and places adjacent thereto has increased and is increasing necessitating the construction by the magistrates and town council of additional waterworks and the extension of their water mains and pipes and that it has become necessary and that it is expedient that the magistrates and town council should be authorised to borrow for the purpose of defraying the cost of such works and extensions the additional sum of two hundred thousand pounds upon the security of the rates and charges leviable by them under the Act of 1866 and the Act of 1881:

And whereas due inquiry having been directed and held in respect of the matters mentioned in the said petition I have resolved to issue a Provisional Order in the terms herein-after expressed:

Now therefore in pursuance of the powers vested in me by the Burgh Police (Scotland) Act 1892 I as Secretary for Scotland do by this Provisional Order direct as follows:—

1. From and after the passing of the Act confirming this Order section 24 of the Act of 1881 shall be read as if the words four hundred and fifteen thousand pounds had been inserted therein instead of the words one hundred and sixty-five thousand pounds Provided that all moneys borrowed by the magistrates and town council under the authority of this Order shall be applied only for the purpose of constructing the several works specified in the Schedule hereto and all works necessary for the proper working and use of the same and for the purchase of land and wayleaves and in payment of the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order.
2. All mortgages granted and all funded debt created under the authority of the Acts of 1866 1876 1881 and the Order of 1897 and subsisting at the passing of the Act confirming this Order shall while subsisting and without prejudice to their priorities inter se have priority over any mortgage granted and any funded debt created by the magistrates and town council under the authority of this Order.

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3. The magistrates and town council shall by means of the sinking fund directed to be formed by section 30 of the Act of 1881 pay off all money borrowed by them under the authority of this Order within fifty years from the date or dates of borrowing the same. Provided that the said last-mentioned section shall as regards money borrowed under the authority of this Order be read as if the rate of interest at which the accumulations of the sinking fund are to be calculated were three per centum per annum instead of four per centum per annum. Provided also that the payments into the sinking fund on account of any loan for paying the costs charges and expenses of this Order shall be sufficient to pay off such loan within five years from the date of borrowing the same.

Given under my hand and seal at Whitehall this fourth day of July one thousand nine hundred.

(L.S.)

BALFOUR OF BURLEIGH.

SCHEDULE.

1. A conduit or line of pipes between Camphill Reservoir and Rowbank Reservoir.
2. A conduit or line of pipes between Rowbank Reservoir and Stanely High Level Filters.
3. A conduit or line of pipes between Glenburn Reservoir and Stanely High Level Filters.
4. An extension of the filtering area and clear water tanks.
5. A conduit or line of pipes between Craigenfeoch Filters and Johnstone.
6. Extensions and alterations on existing lines of piping throughout the water supply district of the magistrates and town council.

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